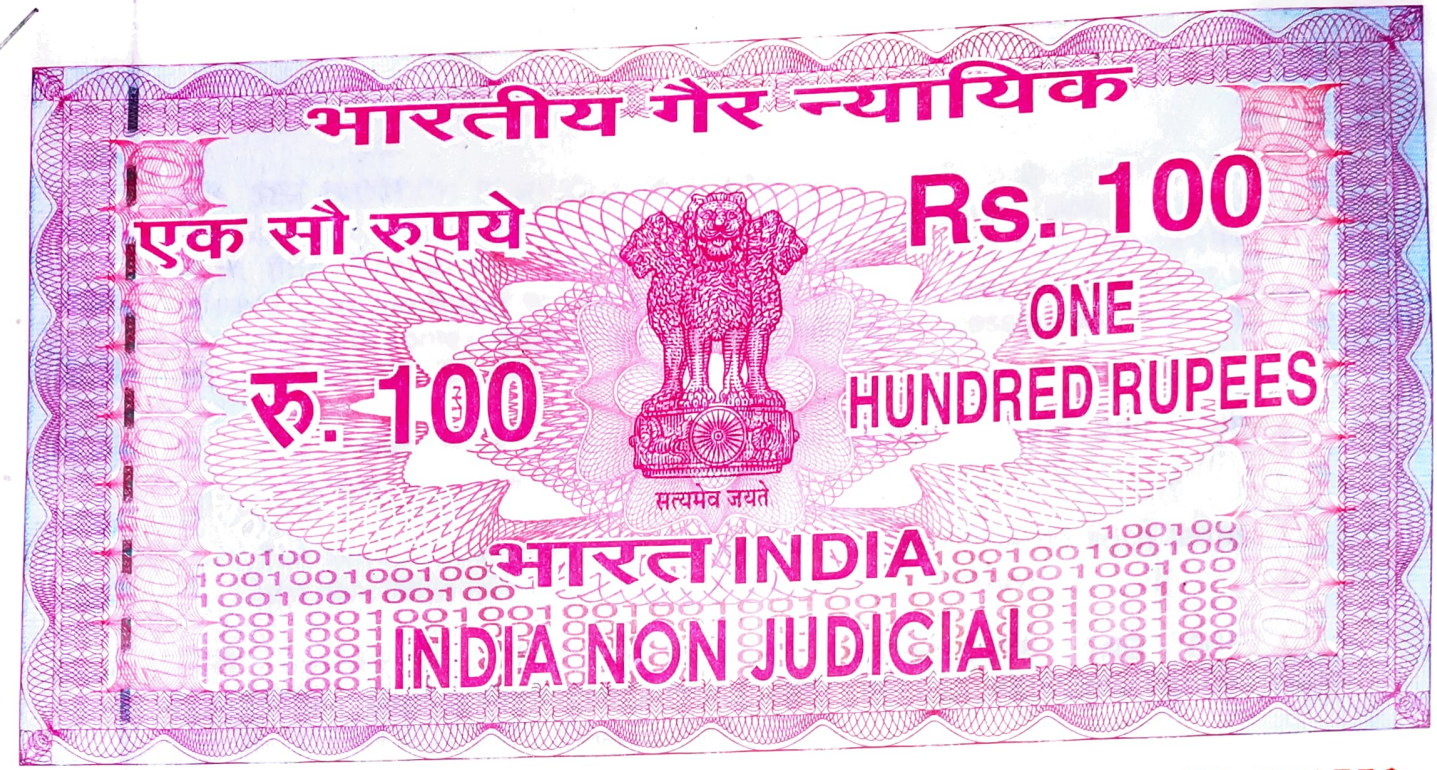


महाराष्ट्र MAHARASHTRA ◐ 2019 ◐ WC 321372

- 5 DEC 2019

अनु.क्र. ..... दि. ..... मु.मु.रक्कम-१०० /-
दस्ताचा प्रकार ..... प्रतिलिपी
दस्त नोंदणी करणार आहेत का? होय / नाही
मिळकतीचे वर्णन
मुद्रांक विक्रेत्याचे नांव ..... NIHVA TECHNOLOGIES PVT. LTD
पत्ता ..... Block,1st Floor, Thermax Chowk, MIDC,Above Renault-Showroom, Chinchwad,Pune-411019.
दुय्यम नि.प. यांचे नांव
हस्ते व्यक्तीचे नांव व पत्ता ..... आशीष मोरे

NIHVA TECHNOLOGIES PVT. LTD
187/G-Block,1st Floor Thermax Chowk,
MIDC,Above Renault-Showroom,
Chinchwad,Pune-411019.
28 NOV 2019

श्री विश्वरूप रामचंद्र जाधव
परवाना क्र. २२०१९५१
प्लॉट नं.१००, से. नं.१८, फुलेनगर
चिंचवड, पुणे - १९
मुद्रांक विक्रेत्याची सही

HIGH SEAS SALE AGREEMENT

AGREEMENT NO: NVA19-20/HSS/AIR - 01

This High Seas Sale Agreement is made this, 7th day of December 2019 between **Nihva Technologies Pvt Ltd**, a company incorporated under the Companies Act, 1956, and having its Registered office at **8/1, Coromant Hsg. Society, Sector 27, Pradhikaran, Nigdi, Pune - 411044** (hereinafter referred to as the **Seller** (which expression unless it be repugnant to the meaning and context thereof be deemed to include their successors and assigns) of the ONE PART.

Contd..page 2

NIHVA TECHNOLOGIES PUNE

M/s. **SEZ BIOTECH SERVICES PVT. LTD.** a company incorporated under the Companies Act, 1956 having its Office at **Poonawalla Biotechnology Park, SEZ, Manjari Bk., Tal – Haveli, Dist. Pune - 412 307.** (hereinafter referred to as the **Buyer** which expression shall unless they be repugnant to the meaning or context thereof, mean and include its successors and assigns) of the OTHER PART.

A. The Seller is desirous of selling its products, more particularly described in clause 01 herein below.

B. The Buyer has agreed to purchase the said products on such terms and conditions as mutually agreed and mentioned herein.

NOW THEREFORE THIS AGREEMENT WITNESSETH AND THE FOLLOWING TERMS AND CONDITIONS ARE HEREBY AGREED TO BY AND BETWEEN BOTH THE PARTIES HERE TO:

01. **DETAILS OF PRODUCTS:**

Sr. No	Description	Qty	Unit	Unit Price (Rs.) CIF	Total Value (Rs.) CIF
01	VL3190 Mega Door 20000 x 7000 mm (CW x CH) "Sliding Door" VL3190 Mega Door 20000 mm X 7000 mm (CW x CH) Model code: VL3190	01	EA	62,86,000	62,86,000

02. SALE PRICE (Rupees Sixty-Two Lac Eighty-Six Thousand Only)
CIF Mumbai Air Port
Above price includes sales commission and overhead expenses to
M/s**. Nihva Technologies Pvt Ltd**
Payment to be made in Indian Rupees locally.

03. DELIVERY By endorsement of Bill of Lading (HAWB) No: INT - 00011623 dated 06-12-2019 and Delivery Order in favor of Buyer.

04. SALE COMPLETION Sale under this Contract will be considered COMPLETED at the moment of endorsement of Bill of Lading and Delivery Order (DO) as described above at Clause (3) DELIVERY along with the Seller's Invoice showing the sale value and documents transfer letter detailing all the accompanying documents.

05. DUTY Customs Duty to be paid by the Buyer.

NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

06. AIR FREIGHT

Air Freight charges till Mumbai Air Port (destination Airport) is included in the Sale Price.

07. INSURANCE

Insurance premium **for dispatch from ASSA ABLOY SYSTEMS PRODUCTION SKELLEFTEA AB, PO BOX NO: 383, SWEDEN, to SEZ Bio – tech services Pvt Ltd, Poonawalla biotechnology park, SEZ, Manjri Bk, Tal – Haveli, Pune - 412307, India,** is included in the Sale Price.

08. GST

GST is not applicable for goods transacted for Sale on High Seas Sale basis at present. However, if GST is payable later on this transaction it shall be paid by the Buyer. If required to be paid by the Seller, the Buyers shall reimburse the same to the Seller on Demand.

09. CLEARANCE

OWNERSHIP AND POSSESSION of the merchandise passes to the Buyer upon DELIVERY as described at (03) above, the Buyer shall make his own arrangements for clearing and taking delivery from the Customs/Carrier/Airport Authorities. In case Buyer fails to take delivery of the material for any reason, except on account of reasons caused by the Seller, Buyer shall be held responsible for all Losses and damages and the sale price paid to the Supplier shall stand forfeited. In case any demurrages / detention/penalties charges are payable due to late submission / improper documentation by the Seller, the said expenses are to be borne by the Seller.

10. PAYMENT

The Buyer will make payments to the Seller as per the terms of Purchase Order No. 5200000596, dated 07-10-2019

11. POST PROCEDURE

The Buyer shall surrender to the Seller the Exchange Control copy of the Bill of Entry, copy of Customs attested Invoice and other documentary proof of having cleared the material from the Customs as are required by the Seller to submit to the Bank and or RBI or any other State or Central Govt. agency.

12. OTHER CONDITIONS Delivery and acceptance of goods.

Any amendments and supplements to this Contract are valid only if they are agreed upon by both the parties in writing and signed by authorized representative of both parties AND ONLY IF EXECUTED BEFORE DELIVERY OF THE GOODS AS DESCRIBED AT (03) ABOVE.

NIHVA TECHNOLOGIES PVT. LTD. * PUNE *

(A) TITLE TO and PHYSICAL POSSESSION OF the goods shall stand transferred to the Buyer on endorsement of Bill of Lading and handing over of the DO duly endorsed in favor of the Buyer.

(B) This sale is subject to force majeure Clause.

(C) After the ownership of the goods is transferred to the Buyer by endorsement of Delivery Order, the Seller will be involved only as a conduit for documents as may be required by such agencies as the bank/s, Indian Customs, RBI. Etc. The Seller is only morally obliged to assist the Buyer in recovering his losses from the Insurance Co. and/or Supplier in the event of any damage during transit, unloading, accidents etc.

IN WITNESS WHERE OF BOTH THE PARTIES HERETO HAVE EXECUTED THIS AGREEMENT IN ORIGINAL, THIS DAY AND DATE AS FIRST MENTIONED HEREIN ABOVE.

SIGNED & DELIVERED:

For
NIHVA TECHNOLOGIES PVT. LTD.
Address: Regd. Off.: 8/1. Coromant Hsg. Society, Sector 27,Pradhikaran, Nigdi, Pune-411044



Authorized person signature

In the presence of:

1. Mr. Amit Kurhade

2. Mr. Ashish Marne

SIGNED & DELIVERED:

For SEZ BIOTECH SERVICES PVT. LTD.
Developer (Poonawalla Biotechnolgy Park, SEZ)

Authorized Signatory

In the presence of:

1.

2.